



CHAPTER cxliii.

An Act to confirm certain Provisional Orders of the A.D. 1911.
Local Government Board relating to Acton Torquay
Tottenham Wolverhampton and the Whaley Bridge
Joint Sewerage District. [18th August 1911.]

WHEREAS the Local Government Board have made the
Provisional Orders set forth in the schedule hereto under
the provisions of the Public Health Act 1875:

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Orders should be
confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty
by and with the advice and consent of the Lords Spiritual and
Temporal and Commons in this present Parliament assembled
and by the authority of the same as follows:—

1. The Orders set out in the schedule hereto shall be and
the same are hereby confirmed and all the provisions thereof
shall have full validity and force. Orders in
schedule
confirmed.

2. This Act may be cited as the Local Government Board's
Provisional Orders Confirmation (No. 4) Act 1911. Short title.

A.D. 1911.

S C H E D U L E.

Acton Order.

URBAN DISTRICT OF ACTON.

Provisional Order for altering the Acton Sewage Act 1905.

To the Urban District Council of Acton ;—

And to all others whom it may concern.

WHEREAS the Urban District Council of Acton (herein-after referred to as "the Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Acton (herein-after referred to as "the District") ;

5 Edw. 7.
c. ccciii.

And whereas the provisions of the Acton Sewage Act 1905 (which Act is herein-after referred to as "the Local Act") are in force in the District ;

And whereas by Sections 4 and 7 of the Local Act the Council were authorised subject as therein provided to make maintain and work in and according to the lines situations and levels shown on certain plans and sections therein referred to as the deposited plans and sections and on the plan referred to in the proviso to the said Section 4 the sewer and sewer outfall works described in that Section together with all necessary works and conveniences connected therewith and by Section 8 of the Local Act the Council were subject as therein provided further empowered in constructing the works authorised by the Local Act to deviate from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and from the levels thereof as shown on the deposited sections to the extent therein mentioned ;

And whereas by Section 29 of the Local Act the Council were authorised by agreement to purchase take on lease acquire and hold for the purposes of the Local Act lands not exceeding in the whole five acres in addition to any lands vested in them by the Local Act subject to the provision that the Council should not acquire any lands under the provisions of the said Section 29 in the Urban District of Chiswick ;

And whereas by Section 37 of the Local Act the Council were empowered to borrow for the purchase of lands for and for the construction of the works authorised by the Local Act the sum of fifty-five thousand pounds and with the approval of the Local Government Board such further sum or sums of money as might be required and by Section 40 provision was made with regard to the periods

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cxliii.]
Provisional Orders Confirmation (No. 4) Act, 1911.

within which any moneys borrowed by the Council as aforesaid should be repaid; A.D. 1911.

Acton Order.

And whereas the Council have constructed the sewer and sewer outfall works described in the Local Act but have constructed the said sewer in part beyond the limits of deviation prescribed by the Local Act and have also for the purposes of the said works acquired certain freehold premises situate in the urban district of Chiswick adjoining Chiswick Mall and known as Rothbury House and Rothbury Cottage;

And whereas the Council have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Local Act in the manner herein-after set forth:

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act shall be altered and amended so that the following provisions shall take effect that is to say:— 38 & 39 Vict. c. 55.

Art. I. The sewer constructed by the Council as aforesaid together with any works and conveniences connected therewith so far as such sewer works or conveniences are beyond the limits of deviation prescribed by the Local Act shall be deemed to have been constructed by the Council in the exercise of their powers under the Local Act and the provisions of the Local Act as altered by this Order shall apply and have effect accordingly. Authorisation of construction of part of sewer outside limits of deviation.

Art. II. Section 29 of the Local Act shall have effect and shall be deemed to have always had effect as if the words "other than the freehold premises known as Rothbury House and Rothbury Cottage adjoining Chiswick Mall" had been inserted immediately after the words "or the urban district of Chiswick" in that section. Authorisation of purchase of Rothbury House property.

Art. III. Section 40 of the Local Act shall apply and have effect as if the words "other than moneys borrowed with the approval of the " Local Government Board within fifty years from the date or dates " of borrowing the same and in the case of moneys borrowed with the " approval of the Local Government Board within such period or " periods not exceeding sixty years as that Board may sanction" were substituted in that section for the words "within fifty years from the date or dates of borrowing the same." Period for repayment of certain loans to be subject to sanction of Local Government Board.

Art. IV. This Order may be cited as the Acton Order 1911. Short title.

Given under the Seal of Office of the Local Government Board
this Sixth day of May One thousand nine hundred and eleven.

(L.S.)

JOHN BURNS President.

H. C. MONRO Secretary.

A.D. 1911.

BOROUGH OF TORQUAY.

*Torquay
Order.*

*Provisional Order for altering the Torquay Corporation
Water Act 1903.*

To the Mayor Aldermen and Burgesses of the Borough of
Torquay ;—

And to all others whom it may concern.

3 Edw. 7.
c. lvi.

WHEREAS the Borough of Torquay (herein-after referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the Council (herein-after referred to as "the Corporation") are the Urban District Council and the local authority within the meaning of the Public Health Act 1875 and the unrepealed provisions of the Torquay Corporation Water Act 1903 (herein-after referred to as "the Local Act") are in force in the Borough ;

And whereas by Section 44 of the Local Act the Corporation were authorised to purchase the lands referred to in the Local Act as the new recreation ground ;

And whereas by Section 51 of the Local Act the Corporation were authorised subject as therein provided to set apart any portion of any park garden or recreation ground for the time being belonging to or held by them for certain games and for the other purposes therein mentioned ;

53 & 54 Vict.
c. 59.

And whereas by Section 52 of the Local Act the Corporation are authorised when the said new recreation ground is held by them and when the whole or any part thereof is so used or set apart for any special purpose as mentioned in Section 51 of the Local Act or for any of the purposes mentioned in the Public Health Acts Amendment Act 1890 to close the same or such part thereof against the public and to demand and take or permit to be demanded and taken such reasonable sums as the Corporation decide for the exclusive occupation of the said new recreation ground or any such portion thereof or for the admission of persons vehicles goods and things into the said new recreation ground or portion thereof so used or set apart and to exclude therefrom all persons vehicles goods and things unless payment be made of the reasonable sum demanded ;

And whereas by Section 54 of the Local Act it is provided that the moneys (if any) received for the admission of any persons to the said new recreation ground or any reading room assembly room or

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cxliii.]
Provisional Orders Confirmation (No. 4) Act, 1911.

enclosure therein or arising from charges made in pursuance of Section 52 of the Local Act shall be carried to the district fund ;

A.D. 1911.
Torquay
Order.

And whereas the Corporation have acquired the land described in the Schedule to this Order (herein-after referred to as "the scheduled land") for the purposes of public walks and pleasure grounds and have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Local Act in the manner hereinafter set forth :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act shall be altered so that the following provisions shall take effect namely :—

38 & 39 Vict.
c. 55.

Art. I.—(1) The provisions of Section 52 of the Local Act shall extend and apply to the scheduled land.

Provisions of
Local Act to
extend and
apply to
scheduled
land.

(2) The provisions of Section 54 of the Local Act shall extend and apply to the moneys (if any) received by the Corporation in pursuance of the provisions of Section 52 of the Local Act as applied by sub-division (1) of this Article.

Art. II. This Order may be cited as the Torquay Order 1911.

Short title.

The SCHEDULE above referred to.

All that piece of land situate between Warborough Road and Bronshill Road in the Borough and known as Plainmoor Field and containing by estimation five acres and three roods or thereabouts.

Given under the Seal of Office of the Local Government Board
this Twenty-ninth day of April One thousand nine hundred
and eleven.

(L.S.)

JOHN BURNS President.
H. C. MONRO Secretary.

[Ch. cxliii.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 4) Act, 1911.

A.D. 1911.

URBAN DISTRICT OF TOTTENHAM.

*Tottenham
Order.*

*Provisional Order for altering the Tottenham Local Board
Act 1890.*

To the Urban District Council of Tottenham;—

And to all others whom it may concern.

53 & 54 Vict.
c. ccxlv.

WHEREAS the Urban District Council of Tottenham (herein-after referred to as "the Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Tottenham (herein-after referred to as "the District") and the unrepealed provisions of the Tottenham Local Board Act 1890 (herein-after referred to as "the Local Act") are in force in the District;

And whereas by Section 12 of the Local Act the Tottenham Local Board of Health who were the predecessors of the Council were empowered to borrow at interest on mortgage of the general district rate and subject to the provisions of the Public Health Act 1875 and any Act amending the same with reference to the borrowing of money such sums as the Local Government Board might from time to time authorise for the purposes in that Section mentioned;

And whereas on the Twenty-ninth day of April One thousand nine hundred and four and on the Thirty-first day of March One thousand nine hundred and five the Local Government Board sanctioned the borrowing by the Council of sums amounting in the aggregate to the sum of fifty-eight thousand nine hundred and ninety pounds for the purposes mentioned in Section 12 of the Local Act and for certain other purposes;

And whereas the Council applied to the Local Government Board for their sanction to the borrowing of the sum of eighteen thousand three hundred and fifty pounds for the purpose of defraying expenditure incurred by the Council in excess of the amount of the said loans the whole or part of which expenditure had been temporarily met out of moneys obtained by the Council by way of overdraft from the London and Provincial Bank Limited (herein-after referred to as "the Bank");

And whereas on the Sixteenth day of December One thousand nine hundred and eight the Local Government Board sanctioned the borrowing by the Council of sums amounting in the aggregate to the sum of thirteen thousand one hundred and seventy-nine pounds in respect of the said excess expenditure but withheld their sanction to the borrowing of further moneys in respect thereof;

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cxliii.]
Provisional Orders Confirmation (No. 4) Act, 1911.

And whereas on the Second day of April One thousand nine hundred and nine the Bank in an action against the Council in the King's Bench Division of the High Court of Justice obtained judgment for the sum of four thousand nine hundred and ten pounds (hereinafter referred to as "the judgment debt") the said sum representing part of the moneys obtained by the Council by way of overdraft from the Bank as aforesaid;

A.D. 1911.

*Tottenham
Order.*

And whereas by an Order of the Chancery Division of the High Court of Justice dated the Twentieth day of July One thousand nine hundred and nine and made in an action against the Council at the suit of His Majesty's Attorney General on the relation of Thomas Tremain it was ordered that the Council be restrained from applying any part of the general district fund or rate or any other public fund or rate under their control in repayment of the sum of four thousand nine hundred and ten pounds obtained by the Council by way of overdraft from the Bank as aforesaid or any part thereof;

And whereas the Council have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Local Act in the manner herein-after set forth:

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act shall be altered so that the following provisions shall take effect that is to say:—

38 & 39 Vict.
c. 55.

Art. I. The Council shall be empowered to discharge the judgment debt out of the district fund and general district rates of the District and for this purpose the Council may provide in each of the general district rates to be made and levied by them for the half-years ending respectively the Thirty-first day of March and the Thirtieth day of September One thousand nine hundred and twelve for raising one-half of the sum required to discharge that debt.

Provision for
discharge of
judgment
debt.

Art. II. This Order may be cited as the Tottenham Order 1911.

Short title.

Given under the Seal of Office of the Local Government Board
this Tenth day of May One thousand nine hundred and
eleven.

(I.S.)

JOHN BURNS President.

H. C. MONRO Secretary.

A.D. 1911.

BOROUGH OF WOLVERHAMPTON.

Wolverhampton Order.

*Provisional Order for altering the Wolverhampton
Improvement Act 1869.*

To the Mayor Aldermen and Burgesses of the Borough of
Wolverhampton; —

And to all others whom it may concern.

32 & 33 Vict.
c. cxxxi. WHEREAS the Borough of Wolverhampton (herein-after referred to as
"the Borough") is an Urban Sanitary District of which the Mayor
Aldermen and Burgesses acting by the Council (herein-after referred
to as "the Corporation") are the Urban Sanitary Authority and the
unrepealed provisions of the Wolverhampton Improvement Act 1869
(herein-after referred to as "the Local Act") as altered by the
Wolverhampton Order 1896 (No. 2) (herein-after referred to as
59 & 60 Vict.
c. clxx. "the Order of 1896") which was confirmed by the Local Government
Board's Provisional Order Confirmation (No. 21) Act 1896 and by
certain other Local Acts and Provisional Orders duly confirmed by
Parliament which do not affect the subject-matter of this Order are in
force in the Borough;

And whereas by Section 136 of the Local Act it is provided that
the Corporation shall continue and maintain and may alter and improve
their existing waterworks and subject to the provisions of the Local
Act may from time to time make and maintain on lands belonging to
them or authorised to be used by them for the purposes of waterworks
all necessary works and conveniences of the kind therein specified for
the effectual use and maintenance of the works by the Local Act
authorised to be continued and maintained;

And whereas it is provided by Section 171 of the Local Act that
if any person causes the water of any sink sewer drain steam engine
or boiler or other filthy water belonging to him or under his control
or any water carrying refuse from any manufactory or work to run or
be brought into the Cosford Brook from which water is taken by the
Corporation below its junction with the Albrighton Brook or into
the Albrighton Brook or does any other act whereby the water of the
Corporation is fouled he shall be liable to the penalties mentioned in
that section;

And whereas by the Local Act and the Order of 1896 the
Corporation were empowered to borrow money for the purposes of
their water undertaking;

[1. & 2 GEO. 5.] *Local Government Board's* [Ch. cxliii.]
Provisional Orders Confirmation (No. 4) Act, 1911.

And whereas the waterworks belonging to the Corporation include a certain pumping station (herein-after referred to as "the Cosford Pumping Station") situate in the Parish of Albrighton in the Rural District of Shifnal and it is expedient that the Corporation be empowered for the purpose of preventing the pollution or contamination of the water supplied therefrom to acquire lands construct maintain and improve works and to carry into effect agreements with any persons and to borrow money for the purpose of the exercise of those powers ;

A.D. 1911.
 ———
Wolverhampton Order.

And whereas the Rural District Council of Shifnal (herein-after referred to as "the Rural Council") propose to construct certain works for the treatment and disposal of the sewage of the Parish of Albrighton and it has been agreed between the Corporation and the Rural Council that after the said works have been constructed the provisions of the said Section 171 shall not apply to the discharge into the Cosford Brook or its tributaries including the Albrighton Brook of any effluent from the said works and that in lieu of those provisions other provision shall be made as herein-after set forth ;

And whereas the Corporation have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Local Act in the manner herein-after set forth :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act shall be altered so that the following provisions shall take effect that is to say :—

38 & 39 Vict.
 c. 55.

Art. I. If and when the Rural Council shall have constructed works in accordance with plans approved by the Local Government Board (in this Article referred to as "the Albrighton Sewage Works") for the treatment and disposal of the sewage of the Parish of Albrighton or of any portion of that Parish the effluent or effluents from which shall pass into the said Cosford Brook or any of its tributaries including the Albrighton Brook the provisions of Section 171 of the Local Act shall not apply or have effect in relation to any such effluent and in substitution for those provisions the following provisions shall apply and have effect that is to say :—

Conditions
 on which
 effluent from
 Albrighton
 Sewage
 Works may
 enter the
 Cosford
 Brook and
 tributaries.

- (1) All sewage arriving at the Albrighton Sewage Works at a rate of flow not exceeding three times the normal flow in dry weather shall be purified to such an extent as to secure that the final effluent therefrom shall comply with the

[Ch. cxliii.] *Local Government Board's* [1 & 2 Geo. 5.]
Provisional Orders Confirmation (No. 4) Act, 1911.

A.D. 1911.

Wolverhampton Order.

following standard or such other standard as the Local Government Board may from time to time by order prescribe:—

(a) it shall not contain more than 3 parts per 100,000 of suspended matter; and

(b) after being filtered through filter paper it shall not absorb more than—

(i) 0·5 part by weight per 100,000 of dissolved or atmospheric oxygen in twenty-four hours; or

(ii) 1·0 part by weight per 100,000 of dissolved or atmospheric oxygen in forty-eight hours; or

(iii) 1·5 parts by weight per 100,000 of dissolved or atmospheric oxygen in five days:

(2)—(A) When sewage arrives at the Albrighton Sewage Works at a greater rate of flow than three times the normal flow in dry weather the excess of flow beyond three times the normal flow in dry weather shall be passed through stand-by tanks of such capacity as may from time to time be approved by the Local Government Board and the effluent from the stand-by tanks shall not be bound to comply with the standard set forth in subdivision (1) hereof or such other standard as may be prescribed in lieu thereof as regards the final effluent;

(B) The Rural Council shall for the purpose of preventing the passage of sludge from the said stand-by tanks into the Cosford Brook or any tributary thereof make such arrangements for cleaning out the said stand-by tanks as may from time to time be approved by the Local Government Board:

(3) Any officer of the Corporation duly authorised by the Corporation for the purpose shall have power from time to time to inspect the Albrighton Sewage Works and to take samples of the effluent therefrom:

(4) If at any time the final effluent from the Albrighton Sewage Works does not comply with the standard set forth in subdivision (1) hereof or such other standard as may be prescribed in lieu thereof the Rural Council shall be deemed to have committed an offence under the Rivers Pollution Prevention Act 1876 and the Corporation may take proceedings against the Rural Council under that Act accordingly:

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cxliii.]
Provisional Orders Confirmation (No. 4) Act, 1911.

- (5) If any difference arises in regard to any subject-matter of or to anything done under the provisions of this Article the difference may on the application of either the Rural Council or the Corporation be referred to the Local Government Board for determination and their determination shall be final and conclusive and it shall be at their option to determine the matter as arbitrators or otherwise and if they elect to determine the matter as arbitrators the provisions of the Regulation of Railways Act 1868 respecting arbitrations by the Board of Trade and the enactments amending those provisions shall apply as if they were re-enacted in this Order and in terms made applicable to the Local Government Board and the determination of the matter.

A.D. 1911.

—
Wolverhampton Order.

31 & 32 Vict.
c. 119.

Art. II.—(1) Subject to this Order the Local Act shall have effect as if such of the provisions of the Public Health Act 1875 and such of the enactments thereby applied or therein referred to as relate to water supply contracts purchase of lands and arbitration and as include Sections 285 and 308 and any other sections of the Public Health Act 1875 which are connected with incidental to or consequent upon the provisions herein-before mentioned were with the necessary modifications re-enacted in the Local Act and in terms made applicable to the water undertaking of the Corporation for the purpose of empowering the Corporation—

Application
of Public
Health Act
1875 to water
undertaking.

- (A) to take any of the following measures for preventing the pollution or contamination of the water supplied by the Corporation from the Cosford Pumping Station or of the sources of that water supply that is to say to acquire by agreement any lands or premises or to construct maintain or improve works or to make and carry into effect agreements with any person or persons; or
- (B) otherwise to take such steps or to do such things as are necessary or expedient for protecting the Cosford Pumping Station and the works connected therewith or the water supplied therefrom or the sources of that water supply from nuisance or injury or for safeguarding the wholesomeness and obviating any deterioration of the quality of the said water supply and its sources:

Provided that the Corporation shall not sink or construct or cause or permit to be sunk or constructed for the purpose of or in connexion with their water undertaking a well or borehole in any lands acquired by virtue of the provisions of this Article.

- (2) All works executed all lands premises property rights and privileges acquired by vested in enjoyed by or attaching to the

Works lands
property &c.
to be deemed

[Ch. cxliii.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 4) Act, 1911.

A.D. 1911. Corporation and all things done by the Corporation in pursuance of subdivision (1) of this Article and of the provisions and enactments which by virtue of that subdivision are made applicable to the water undertaking of the Corporation shall notwithstanding anything in the said provisions enactments and subdivision be deemed where the circumstances so require to be included in the water undertaking of the Corporation and the Local Act shall apply and have effect accordingly.

Wolverhampton Order.
part of water undertaking.

(3) Nothing in this Article shall prejudicially affect the saving protection reservation confirmation or validation under the Local Act of any rights interests powers privileges authorities duties liabilities obligations claims or demands and in relation to any such saving protection reservation confirmation or validation the Local Act shall continue to operate as if this Order had not been made.

Saving &c. provisions in Local Act.

Art. III. In addition to the sums already authorised to be borrowed for the purposes of their water undertaking the Corporation may with the sanction of the Local Government Board and subject to the provisions of this Order borrow upon the security of the revenue arising from their water undertaking and of the improvement fund and improvement rate of the Borough or upon either of those securities such sums as may from time to time be required for any of the purposes of Article II. of this Order.

Borrowing powers for purposes of Order.

Art. IV. The moneys borrowed under Article III. of this Order shall be repaid within such period from the date of borrowing as the Corporation with the sanction of the Local Government Board in each case determine and the period so determined and sanctioned is hereinafter referred to as "the prescribed period" and shall with reference to the repayment of those moneys be the prescribed period for the purposes of Article VI. of this Order of Articles VII. and VIII. of the Order of 1896 as applied by this Order and of the Local Loans Act 1875.

Period for repayment of borrowed moneys.

Art. V. Articles V. VII. VIII. X. XI. XII. and XIII. of the Order of 1896 shall apply as if those Articles were herein re-enacted and in terms made applicable to the moneys borrowed under this Order and otherwise to the purposes of this Order.

Repayment &c. of borrowed moneys and costs of local inquiries.

Art. VI.—(1) The Corporation shall have power—

Power to re-borrow.

(A) to borrow for the purpose of paying off any moneys previously borrowed under this Order which are intended to be forthwith repaid; or

(B) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cxliii.]
Provisional Orders Confirmation (No. 4) Act, 1911.

from other funds of the Corporation in repaying moneys previously borrowed under this Order and which at the time of such repayment it was intended to replace by borrowed moneys. A.D. 1911.
Wolverhampton Order.

(2) Any moneys borrowed under this Article shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the prescribed period which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this Article.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

- (A) by instalments or annual payments ; or
- (B) by means of a sinking fund ; or
- (C) out of moneys derived from the sale of land ; or
- (D) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

Art. VII. This Order may be cited as the *Wolverhampton Order* Short title. 1911.

Given under the Seal of Office of the Local Government Board
this Eighth day of May One thousand nine hundred and
eleven.

(L.S.)

JOHN BURNS President.

H. C. MONRO Secretary.

WHALEY BRIDGE JOINT SEWERAGE DISTRICT.

Provisional Order for altering a Confirming Act.

*Whaley
Bridge Order.*

To the Whaley Bridge Joint Sewerage Board ;—

To the Urban District Council of Yeadsley cum Whaley ;—

To the Rural District Councils of Chapel-en-le-Frith Disley and
Macclesfield ;—

And to all others whom it may concern.

WHEREAS by the Whaley Bridge Joint Sewerage Order 1909 which was confirmed by the Local Government Board's Provisional Orders 9 Edw. 7. Confirmation (No. 9) Act 1909 (which Order and Act are herein-after c. clvi.

[Ch. cxliii.] *Local Government Board's* [1 & 2 GEO. 5.]
Provisional Orders Confirmation (No. 4) Act, 1911.

A.D. 1911. respectively referred to as "the Order of 1909" and "the Confirming Act") the Urban District of Yeardsley cum Whaley the Rural District of Disley the part of the Rural District of Chapel-en-le-Frith comprising the contributory places of Chinley Bugsworth and Brownside Chapel-en-le-Frith and Fernilee and the part of the Rural District of Macclesfield comprising the contributory place of Taxal were formed into a United District called the Whaley Bridge Joint Sewerage District (herein-after referred to as "the United District") of which the governing body is the Whaley Bridge Joint Sewerage Board (herein-after referred to as "the Joint Board") for the purposes of the construction and maintenance of a main sewer or main sewers and of any such works as might be required for the reception and disposal of the sewage of the United District;

And whereas the said Urban District the said Rural District of Disley and the said parts of the said Rural Districts of Chapel-en-le-Frith and Macclesfield are herein-after separately referred to as a "Constituent District" and each of the District Councils of those Urban and Rural Districts is herein-after referred to as a "Constituent Authority";

And whereas by subdivision (1) of Article XVI. of the Order of 1909 it is provided that all the expenses incurred by the Joint Board shall be defrayed out of a common fund to which each Constituent Authority shall contribute in the proportion which the number of the inhabitants of premises in their Constituent District which have drains communicating directly or indirectly with any main sewer or sewage disposal works of the Joint Board bears to the total number of inhabitants of all premises in the United District which have drains so communicating;

And whereas it is expedient that the Order of 1909 should be altered as herein-after provided for:

38 & 39 Vict. c. 55. Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 297 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order (herein-after referred to as "the commencement of this Order") the Confirming Act so far as it relates to the Order of 1909 shall be altered so that the following provisions shall take effect that is to say:—

Expenses of
Joint Board.

Art. I.—(1) Notwithstanding anything in the Order of 1909 all the expenses of the Joint Board including any sum required for the repayment of moneys borrowed by the Joint Board and for the payment of interest on those moneys shall during the period of two years from the commencement of this Order or during such longer period as the

[1 & 2 GEO. 5.] *Local Government Board's* [Ch. cxliii.]
Provisional Orders Confirmation (No. 4) Act, 1911.

Local Government Board may by order allow be defrayed out of a common fund to which the Constituent Authorities shall contribute in the following proportions namely:—

A.D. 1911.
*Whaley
 Bridge Order.*

The Urban District Council of Yeardsley cum Whaley -	$\frac{1400}{5000}$
The Rural District Council of Chapel-en-le-Frith -	$\frac{2824}{5000}$
The Rural District Council of Disley - - -	$\frac{400}{5000}$
The Rural District Council of Macclesfield - - -	$\frac{376}{5000}$

(2) The provisions of subdivision (2) of Article XVI. of the Order of 1909 shall apply to every contribution of a Rural District Council as a Constituent Authority to the common fund in pursuance of subdivision (1) of this Article as if the said provisions were herein re-enacted and in terms made applicable to the said contribution.

Art. II. This Order may be cited as the Whaley Bridge Joint Short titles.
 Sewerage Order 1911 and the Order of 1909 and this Order may be cited together as the Whaley Bridge Joint Sewerage Orders 1909 and 1911.

Given under the Seal of Office of the Local Government Board
 this Second day of May One thousand nine hundred and
 eleven.

(L.S.)

JOHN BURNS President.
 H. C. MONRO Secretary.

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